

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402921	HUNSBERGER VS BODO-PRICE	HEARING RE: MOTION FOR ATTORNEYS FEES BY STEVEN HUNSBERGER

Tentative Ruling: If the court finds a special motion to strike is “frivolous or is solely intended to cause unnecessary delay,” it is required to award costs and reasonable attorney fees “pursuant to Section 128.5” to a “plaintiff prevailing on the motion.” (CCP § 425.16(c); see *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131; *Olive Properties v. Coolwaters Enterprises, Inc.* (2015) 241 Cal.App.4th 1169, 1177 [sanctions affirmed where tenant’s anti-SLAPP motion “clearly without merit” and brought to stall landlord’s unlawful detainer action].)

The reference to CCP § 128.5 means a court “must use the procedures and apply the substantive standards of CCP § 128.5 in deciding whether to award fees under the anti-SLAPP statute.” (*Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382, 1392 [superseded by statute on another ground]; *Moore v. Shaw* (2004) 116 Cal.App.4th 182, 199 & fn. 9.)

CCP § 128.5(b)(2) defines “frivolous” to mean “totally and completely without merit or for the sole purpose of harassing an opposing party.” When a motion has partial merit, it is not “totally and completely” without merit; nor can it be said that its “sole” purpose is to harass. (*Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 450.) The determination that an anti-SLAPP motion is “totally and completely without merit” requires a finding that “any reasonable attorney would agree such motion is totally devoid of merit.” (*Moore, supra*, 116 Cal.App.4th at 199.)

In support of the argument that the Anti-SLAPP motion was frivolous, Plaintiff argues Defendants’ position lacked any “tenable nexus” to protected activity, that the litigation privilege argument was devoid of merit, that Defendants “relied on false allegations of criminality,” that Defendants persisted with an appeal after the trial court’s “step-one denial,” and that Defendants raised the same issues on appeal as raised in the trial court. None of these conclusory arguments, nor Defendants’ Anti-SLAPP motion itself, support a finding that it was frivolous.

The fact that the motion proceeded only to the first prong of anti-SLAPP analysis does not mean the motion was frivolous. The argument that Defendants’ appealed without any “new arguments” likewise fails to contribute to a finding of frivolity. An appeal does not necessarily require new arguments or facts because Defendants were challenging the court’s ruling on the arguments made at the trial court level. Plaintiff cannot take the fact that Defendants’ motion and appeal were denied as support for a finding that the motion and appeal were so meritless that they were frivolous.

Ultimately, Defendants’ anti-SLAPP motion was not frivolous. The primary issue was whether the various instances of speech were made in connection with a public issue or an issue of public interest under CCP § 425.16(e)(3) or (e)(4). It was a close determination that required detailed review of the applicable case law. Both this court and the Court of Appeal in their decision weighed the context of the statements against various

cases, primarily *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475. As the Court of Appeal points out in its opinion when comparing this case to *Damon*, “While there are some similarities, there are also some key differences.” (Plaintiff’s Motion, Exhibit C at p. 12.) The Court of Appeal goes on to state, “This case requires us to analyze statements that **fall between** those at issue in *Damon* and *Du Charme*.” (*Id.* at p. 13.).

Because of this, it cannot be said that the Anti-SLAPP motion was totally and completely without merit or for the sole purpose of harassing Plaintiff.

Motion for Attorney’s Fees and Costs in Opposing Frivolous Anti-SLAPP Motion Filed by Defendants Cornelia Bodo-Price and Richard Gulyas DENIED.

Status Hearing set for October 5, 2026 is VACATED. A remittitur from the Court of Appeal, affirming the trial court, was filed on July 17, 2026.

Case Management Conference shall be scheduled for October 5, 2026. The parties are ordered to file with the Court ten days in advance of the continued CMC a declaration that should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. Updated Case Managements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

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CASE #	CASE NAME	HEARING NAME
CVPS2503356	TOLLIVER VS CITY OF PALM SPRINGS	HEARING RE: MOTION FOR LEAVE TO AMEND COMPLAINT OF KAREN TOLLIVER BY KAREN TOLLIVER

Tentative Ruling:

No Opposition filed.

Motion for Leave to Amend Complaint by Karen Tolliver GRANTED.

The First Amended Complaint attached as Exhibit 1 to the Declaration of Alanna Blalock is deemed filed as of the date of this Order.

Motion to Quash Subpoena confirmed for August 14, 2026.

Case Management Conference and OSC confirmed for January 29, 2027.